

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF BOBROVA AND OTHERS v. RUSSIA

(Applications nos. 57518/22 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

18 January 2024

This judgment is final but it may be subject to editorial revision.



In the case of Bobrova and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 December 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants in the protests against the Russian invasion of Ukraine that occurred in various parts of Moscow on 6 March 2022. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of participants of public assemblies; and *Karelin v. Russia*, no. 926/08, §§ 58-85,

20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that there has been a breach of Article 11 of the Convention in the applicants' cases;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 18 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Péter Paczolay
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	57518/22 13/11/2022	**Mariya Andreyevna BOBROVA** 2003		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 21/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.30 p.m. until 9 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
2.	40/23 10/11/2022	**Dmitriy Konstantinovich KAZAK** 1998		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 11/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.25 p.m. until 11.54 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	42/23 23/11/2022	**Andrey Anatolyevich PETRITSKIY** 1955		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 29/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.15 p.m. on 06/03/2022 until 2.33 a.m. on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
4.	70/23 11/11/2022	**Yelena Vladimirovna UKUSOVA** 1971		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 13/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.20 p.m. until 9.10 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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5.	901/23 29/11/2022	**Valentina Nikolayevna KORSHIKOVA** 1996	Malinina Yuliya Valeryevna Moscow	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 29/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 3.30 p.m. until 7.30 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	1184/23 25/11/2022	**Anisiya Yevgenyevna BORISENKO** 1994		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 25/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.40 p.m. until 9.25 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
7.	1194/23 08/12/2022	**Yevgeniy Mikhaylovich MENDELEV** 1983		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 09/08/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
8.	1203/23 29/11/2022	**Anatoliy Igorevich LOGACHEV** 1990		article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 09/09/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 2.30 p.m. on 06/03/2022 until 12.10 a.m. on 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	1515/23 21/12/2022	**Denis Leonidovich BELYAKOV** 1968		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 25/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.15 p.m. until 10.15 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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10.	1693/23 04/12/2022	**Anastasiya Alekseyevna NIKONOROVA** 1997	Filatchev Oleg Vladimirovich Moscow	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 05/08/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
11.	1694/23 16/12/2022	**Yevgeniya Yevgenyevna SMIRNOVA** 1991		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 23/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.45 p.m. until 9.15 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	1701/23 30/11/2022	**Rafael Ruslanovich SADRTDINOV** 1995		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 03/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6.40 p.m. on 06/03/2022 until 12.30 a.m. on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
13.	1779/23 17/12/2022	**Anna Pavlovna BYCHENKOVA** 1996		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 31/08/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 3.30 p.m. until 8.10 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
14.	4248/23 26/12/2022	**Kirill Alekseyevich DMITRIYEV** 1995	Baranova Nataliya Andreyevna Moscow	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 07/09/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.05 p.m. on 06/03/2022 until midnight on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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15.	4469/23 29/12/2022	**Valeriy Anatolyevich VOVK** 1967		article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 31/08/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	4801/23 06/01/2023	**Maksim Anatolyevich KONNYCHEV** 1991		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 07/09/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
17.	5092/23 03/01/2023	**Roman Sergeyevich POZDNYAKOV** 1990		article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 13/09/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 2.50 p.m. on 06/03/2022 until 2.45 a.m. on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
18.	5096/23 15/12/2022	**Leonid Pavlovich VARFOLOMEYEV** 1996		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 15/08/2022	Art. 5 (1) - unlawful detention – escorting to and detention at the police station for compiling an offence report from 2.15 p.m. until 7.20 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	5113/23 10/12/2022	**Yekaterina Valentinovna NOVIKOVA** 1952		article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 17/08/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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20.	5117/23 04/01/2023	**Mstislav Igorevich BABCHENKO** 1994		article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 05/09/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.30 p.m. on 06/03/2022 until 12.30 a.m. on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
21.	5832/23 12/01/2023	**Yevgeniy Valeryevich ROMANOVSKIY** 1995		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 15/09/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
22.	6011/23 20/12/2022	**Danila Vasilyevich CHURMANTEYEV** 1975		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 29/08/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	6751/23 21/12/2022	**Anastasiya Mikhaylovna KOSTYUKHINA** 1990		article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 23/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.40 p.m. until 10.10 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	6762/23 06/01/2023	**Dmitriy Aleksandrovich ZRAZHEVSKIY** 1982		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 07/09/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.30 p.m. on 06/03/2022 until 1.30 a.m. on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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25.	7265/23 26/10/2022	**Dmitriy Igorevich PEYCH** 1985		article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 27/06/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.30 p.m. until 9.15 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.